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Big Brother or crime fighter? Elbert County says ‘no’ to license plate readers

By **Carol McKinley, Special to the Denver Gazette** February 17, 2024 | updated 2 years ago



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Castle Rock Police Department Officer Adrian Mendez talks with an officer in the field about a suspect vehicle that may be coming into town as he keeps an eye on an array of computer monitors flagging suspected stolen vehicles via the Flock Safety license plate recognition cameras mounted around the city on Tuesday, Feb. 13, 2024, in the Strategic Response Center at the department's headquarters in Castle Rock, Colo. (Timothy Hurst/Denver Gazette)

Timothy Hurst/Denver Gazette

In a clash between personal freedoms and technology-driven public safety, the guys controlling Elbert County's purse strings won.

In May — to the dismay of the Elbert County Sheriff's Office — its own panel of county commissioners became what is likely the first governmental entity in Colorado to challenge the reach of cutting-edge surveillance technology avowed by law enforcement as a powerful crimefighting tool.

In December, the Elbert County Commissioners voted, 3-0, against renewing the contract for the region's nine Flock Safety brand license plate readers because constant surveillance of passing vehicles is too much "Big Brother" for their comfort.

“This is a place where people ought to be able to live freely and enjoy their properties and their lifestyle without being concerned about who’s watching them ” Commissioner Chair Chris Richardson said of constituents in this



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But this version of LPR’s, operated by a private Atlanta company called Flock Safety, is actually a high-speed camera on 24/7 watch atop poles on handpicked county roads and busy intersections. Two of these contraptions are placed on nondescript poles at each entrance of a loop, which winds around Elbert county’s biggest attraction — a shopping center anchored by a Walmart.

A few residents interviewed by The Denver Gazette were not aware that the cameras existed and, thus, did not know they were being tracked.

“We have a right to know about them, but I’d like to keep them,” said Elbert County resident Robin Hauger, who was eating a McDonald’s lunch, parked right across from the loop entrance. She had never noticed the contraption placed across the street, although she had driven past it dozens of times.

In fact, it took months after the cameras were erected in Elbert County before concerned constituents brought the LPRs to the county commissioners’ attention. That’s when Richardson and the rest of the panel started looking into the good versus the bad about them.

Courts have ruled there is no citizens’ right-to-privacy on public streets.

Police state or police tool?

At a Dec. 13, 2023 weekly commissioners’ meeting, Elizabeth resident Maggie Witherbee described Flock LPRs as a threat of “an advancing police state.”

In the same room was Elbert County Sheriff Tim Norton, who pleaded with the panel to keep the county's nine automated sentinels rolling.



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Sometimes, that number dwindles to one deputy and one sergeant, according to Elbert County Undersheriff Dave Fisher. He said the department currently employs 42 sworn officers, down seven from where it should be.

Fisher advised Flock Safety that its contract is not being renewed. All nine of Elbert County's cameras will be removed this May.

Last June, a Flock camera alerted on a black Hyundai Accent careening 90 – 100 miles per hour on Kiowa-Bennett Road and County Road 194 in the middle of the afternoon. Elbert County Sheriffs learned that the vehicle, which had Iowa plates, had been stolen out of Denver. After a dangerous chase, the driver, Brittany Griffin, was arrested on suspicion of second-degree motor vehicle theft, felony vehicle alluding and reckless driving.

Before the cameras, law enforcement caught suspects the old-school way — relying on eyewitness descriptions. But rural areas with miles of wide, open roads present opportunities for joy rides and easy getaways.

“We are going to miss more people driving stolen cars in the county who otherwise would have been caught,” said Elbert County Chief District Attorney Eva Wilson.

The loss of the cameras will “tie our hands even more,” Sheriff Norton told The Denver Gazette.

Each Flock LPR costs \$2,500 for a year of service.

But it's not the cost of the technology that gives him pause, said Elbert County Commissioner Dallas Schroeder.



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During last December's meeting, Schroeder compared the acceptance of law enforcement's latest tracking device technology to Nazi Germany's pursuit of Jewish citizens in pre-World War II Germany.

In a book titled "IBM and the Holocaust," author Edwin Black pointed to documents that show IBM leased punch card machines to the Nazis who controlled census and registration used to track Jewish people starting in 1933.

"The danger is that the data could be used to single out groups of people — by race, religion, or political affiliation," Schroeder told The Denver Gazette.

Unlikely bedfellows

Schroeder, a staunch Republican, chuckled that he rarely agrees with the American Civil Liberties Union. But he admitted the ACLU's negative stance on the widespread use of Flock cameras is an exception.

In a [February 2023 article](#), the ACLU accused Flock Safety of creating a mass surveillance system supported by a heavily connected network that allows federal and local law enforcement "to access the comings and goings of vehicles in even the smallest of towns" and described the company's growing web of cameras as having "Orwellian scope."

In the article, the ACLU urged citizens to put a halt to the trend by contacting elected officials to oppose the tool "full stop."

"In our country, the government should not be tracking us unless it has individualized suspicion that we're engaged in wrongdoing," the group said.



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Flock in Colorado

Half of Elbert County's 28,000 residents commute to the Denver metro area. In Denver, the police department and mayor recently announced that it will do exactly the opposite of what Elbert County is doing.

This Spring, Denver will give a substantial nod to Flock technology by installing 109 of the license plate readers in high-crime areas, such as downtown and East Colfax. Currently, Colorado's capital city with the state's worst auto theft problem has only two of them.

"We are not going to be shy about where the cameras are located," Denver Police Chief Ron Thomas said as he and Denver Mayor Mike Johnston rolled out their plan to fight Denver's crime problem to a room full of television cameras.

Johnston said that Denver's high levels of car theft happens because of a drop in police staff, a broader pattern of rising crime and the fact that certain car models are easier to steal.

His own car was stolen in November. He is encouraging citizens to register their cars with the Denver Police through a program called [DenverTrak](#).

"We want to make sure that there's not one sneaky route to get out of Denver that every thief knows they can use without being detected," Johnston said.

"We want to make sure we can find them wherever they go."

By capturing the image of license plate numbers on passing vehicles, the system alerts law enforcement to stolen cars, to criminals on the run in their own vehicles — and even keys in Amber Alerts — and on missing elderly who



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In 2022, the Colorado lawmakers passed a statute that requires all “passive surveillance” to be destroyed after three years of the date when the license plate is read. The law defines passive surveillance as “the use by a government entity of a digital video camera, video tape camera, closed circuit television camera, film camera, photo radar recorder, or other image recording device positioned to capture moving or still pictures or images of human activity on a routine basis or for security or other purposes.”

Still, most jurisdictions remove unused data sooner than that, according to Cale Gould of the Colorado Auto Theft Prevention Authority.

“Most agencies only store the license plates of law-abiding citizens for 30 days and then they delete them,” he said.

Gould admitted, though, that LPR misreads can happen due to an obscured license plate or sun glare. Suspects can also remove license plates of stolen vehicles before they drive, but an unidentified car warrants probable cause for a search.

In an email, Flock Safety spokesperson Connor Metz told The Denver Gazette that its LPRs contain no facial recognition capabilities and that the system does not connect with vehicle registration databases.

“Our LPR system is fully auditable. Each search requires a search reason which, along with the search itself, is recorded and saved. This search history is available for audit to law enforcement leadership, City Council, or other officials depending on an agency’s policy,” Metz said. “Per our terms of service, Flock does not own any of the data or images recorded by our

devices; customers own 100% of their data. This means that Flock can never sell or share the data with private third parties.”



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these are in Colorado, according to media.

For Richardson, Schroeder, and the ACLU, the fact that a private company operates such a vast network is a deal-breaker.

Flock believers

Douglas County is sold on Flock. It has 34 cameras and is in the process of adding 13 more this spring. There are roughly another 30 privately owned cameras within Douglas County, including in subdivisions, such as Castle Pines.

Douglas County Sheriff Darren Weekly attributes the area’s 27% decrease in auto theft last year in part to license identification by Flock cameras, according to spokesperson Cocha Heyden.

The Castle Rock Police Department has its own Strategic Response Center, where Officer Adrian Mendez monitored an array of computer screens which are connected to the force’s fleet of Flock cameras. These LPRs take photos of every vehicle’s license plate, which translates to a heavy amount of data. But only cars suspected to be associated with criminal activity are flagged for follow-up, and Mendez admitted that not all of the hits are positively associated with criminal activity.

Castle Rock Police are considered a leader in Colorado with Flock technology.

In 2021, Castle Rock police moved to stationary license plate readers as an innovative way to fight all types of crimes. When it came to auto theft, it

appeared to have an immediate effect, as the force saw reductions over the next two years.



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According to the Colorado Auto Theft Prevention Authority, Castle Rock saw a 25% decrease in auto thefts in 2021, followed by a 15% decrease in 2022 for a total of a 40% reduction in car theft since the Flock cameras were installed.

Still, Colorado ACLU staff attorney Laura Moraff warns against singling out specific cases to prove that the Flock system works.

“The question isn’t whether there are any instances of using automatic license plate readers that seem innocuous on their own,” Moraff said. “The question is whether we’re okay with law enforcement using these invasive systems that capture massive amounts of information about innocent people even when there’s no reason to think they’ve done anything wrong. We shouldn’t allow that kind of suspicion-less surveillance in Colorado.”

Shot from behind

On Santa Fe Trail in southern Elbert County stands a single Flock license plate reader with a shotgun-shell hole in its back side — likely targeted by a citizen for not minding its own business.

Undersheriff Dave Fisher said that Camera #7 has been shot up three times and replaced thrice, but it did not capture an image of the shooter because these license plate readers only take pictures from the front. If there were, there might be a charge of criminal mischief for the mystery suspect.

With so little evidence to go on, Schroeder — who owns a shotgun and hunts — conducted a behavioral profile.

“Whoever did the shooting doesn’t like the cameras,” said Schroeder. “I can assure you, it wasn’t me.”



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